

# UNIT V - Intellectual Property Rights

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## SECTION 1: TRADE SECRETS

### 1.1 Definition of Trade Secret

A trade secret is any confidential business information that provides a competitive edge and is not generally known. It can include formulas, patterns, compilations, programs, devices, methods, techniques, or processes that derive economic value from not being publicly known.

**NOTE: Key Requirement: The owner must take reasonable steps to maintain secrecy for it to qualify as a trade secret.**

Examples of trade secrets include:

- Coca-Cola's original formula
- Google's search algorithm
- KFC's recipe of 11 herbs and spices
- Customer databases and pricing strategies
- Manufacturing processes and techniques

### 1.2 Significance of Trade Secrets

Trade secrets play a vital role in business and innovation for the following reasons:

- **Competitive Advantage:** Give businesses an edge over competitors without public disclosure.
- **No Expiry:** Unlike patents (20 years), trade secrets can last indefinitely as long as secrecy is maintained.
- **No Registration Required:** There is no formal registration process, making protection immediate and cost-free.
- **Broad Coverage:** Can protect information that may not qualify for patent protection.
- **Commercial Value:** Derive economic value from their secrecy, making them valuable business assets.
- **Encourages Innovation:** Motivates companies to invest in R&D knowing their innovations are protected.

### 1.3 Tools to Protect Trade Secrets in India

India does not have a specific Trade Secrets Act but protects them through various legal tools:

### 1.3.1 Contractual Tools

- Non-Disclosure Agreements (NDAs): Bind employees, contractors, and business partners to secrecy. Any breach is actionable in court.
- Non-Compete Clauses: Prevent employees from joining competitors for a specified period (enforceability is limited under Indian Contract Act).
- Employment Contracts: Include confidentiality clauses as standard terms for employees handling sensitive information.
- Licensing Agreements: Include restrictions on use and disclosure when sharing trade secrets with partners.

### 1.3.2 Legal Framework

- Indian Contract Act, 1872: Breach of confidence and misuse of confidential information can be sued under common law principles.
- Information Technology Act, 2000: Protects against unauthorized access and data theft (Sections 43, 66, 72).
- Indian Penal Code, 1860: Sections on criminal breach of trust (Section 405) and theft of property can apply.
- TRIPS Agreement: India, as a signatory, is obligated to protect undisclosed information under Article 39.
- The Competition Act, 2002: Prevents anti-competitive practices involving trade secrets.

### 1.3.3 Administrative / Operational Tools

- Physical Security Measures: Restricted access areas, ID-based entry, locked storage of documents.
- Digital Security: Encryption, access controls, firewalls, password policies, audit trails.
- Employee Training: Educating staff about confidentiality obligations and consequences of breach.
- Trade Secret Audits: Regular review of what information qualifies as a trade secret and how it is protected.
- Marking Confidential Documents: Labelling sensitive documents as 'Confidential' or 'Proprietary'.

### 1.3.4 Judicial Remedies

- Injunction: Courts can grant temporary or permanent injunctions to prevent further disclosure.
- Damages: Monetary compensation for losses suffered due to misappropriation.
- Account of Profits: Wrongdoer may be required to return profits earned from misuse.
- Criminal Prosecution: Under the IT Act and IPC provisions.

## SECTION 2: INDUSTRIAL DESIGN

### 2.1 Introduction to Industrial Design

Industrial design refers to the aesthetic or ornamental features of a product that result from its shape, configuration, pattern, or color applied by industrial processes. The Designs Act, 2000 governs the protection of industrial designs in India, replacing the earlier Designs Act, 1911.

Under Section 2(d) of the Designs Act, 2000:

**NOTE: 'Design' means only features of shape, configuration, pattern, ornament or compositions of lines or colours applied to any article whether in two or three dimensional or both, by any industrial process or means whether manual, mechanical or chemical, separate or combined, which in the finished article appeal to and judged solely by eye, but does not include any mode or principle of construction or anything which is in substance a mere mechanical device, and does not include any Trade Mark or Artistic Work.**

### 2.2 Key Definitions under the Designs Act, 2000

#### 2.2.1 Article (Section 2(a))

Means any article of manufacture and any substance, artificial or partly artificial and partly natural, and includes any part of article capable of being made and sold separately.

#### 2.2.2 Original (Section 2(g))

In relation to design means originating from the author of such design and includes cases which though old in themselves yet are new in their application.

#### 2.2.3 Shape and Configuration

These signify something solid in three dimensions where an idea is incorporated into the article. Example: Coke bottle shape.

#### 2.2.4 Pattern and Ornament

These relate to something two-dimensional. Examples include engravings on metal, ornamentation on carpet using geometric figures and combinations of color. Note: Mere painting of natural scenes on plain paper is NOT an industrial design.

### 2.3 Features / Characteristics of Industrial Design

- Visual Appeal: Must appeal to the eye and be judged solely by the eye.
- Applied to an Article: Must be embodied in a manufactured article.
- Novel and Original: Must be new and distinguishable from known designs.
- Industrial Applicability: Must be capable of being produced by industrial processes.
- Functional Aspects Excluded: Technical features, modes of construction, and principles are not registrable.

- Not Publicly Disclosed: Must not have been disclosed to the public anywhere in India or abroad prior to filing.

## 2.4 Requirements for Registration

A design must satisfy all of the following to be registrable:

- Be New or Original
- Be Distinguishable from known designs or combinations of known designs
- Be applied to an article
- Not be disclosed to the public in any form prior to filing
- Appeal to the eye
- Not comprise obscene or scandalous matter
- Not be contrary to public order or morality

## 2.5 What CANNOT be Registered (Section 4)

Under Section 4 of the Designs Act, 2000, the following shall NOT be registered:

- Designs that fail to meet requirements of novelty, originality and/or individual character
- Designs dictated by technical function
- Designs with official symbols or emblems
- Designs contrary to public order or morality
- Designs already disclosed to the public (in India or elsewhere) before filing date
- Designs not significantly distinguishable from known designs

Additionally, the following articles are not registrable:

- Calendars, certificates, forms, greeting cards, leaflets, maps, building plans, medals
- Mere mechanical gadgets
- Basic shapes or variations commonly used in trade
- Flags, emblems, or signs of any country, computer icons
- Stamps, Labels, Tokens, Trade Marks, Property Marks, Cards, Cartoons
- Mere change in size
- Computer chip and integrated circuit designs
- Buildings and structures
- Parts of articles not sold separately
- Design applied to inner portion of article not visible in the finished product

## 2.6 Novelty in Design

Novelty is assessed based on the following principles:

- Judged solely by eye with respect to external appearance of the finished article.
- Neither constructional details nor utility of the article are relevant for registration.
- Novelty may reside in the application to an article even if the design element itself is old.

- Absolute novelty is required: the design must not be publicly known or used in India or elsewhere.
- Combination of previously known designs can be registered if it produces a new visual appeal.
- Colour may form part of design, but colour alone cannot constitute the subject matter of a design.
- Novelty and originality are judged on evidence of experts in the trade.

## 2.7 Salient Features of the Designs Act, 2000

The Designs Act, 2000 introduced several significant changes over the 1911 Act:

1. Enlarged scope of definitions of 'Article' and 'Design'.
2. Addition of definition of the term 'Original'.
3. Introduction of delegation of powers to Examiners and other Officers by Controller.
4. Codification of non-registerable designs.
5. Substitution of classification system (Locarno classification adopted).
6. Removal of secrecy period of two years for a registered design.
7. Public inspection available after notification in the Official Gazette.
8. Rights of Registered Proprietor clearly defined.
9. Provision for Restoration of Lapsed Design.
10. Electronic Register of Design maintained.
11. Initial term of protection for 10 years, extendable by 5 years on request.
12. Provision for appeal before High Court against Controller's order.
13. Registration of assignments and transfer of rights made mandatory.
14. Penalty for piracy of registered design enhanced.
15. Inclusion of Paris Convention countries for priority claims.

## 2.8 Procedure for Obtaining Design Protection

### 2.8.1 Filing Requirements

The following documents and information are required:

- Applicant: Any individual or legal entity.
- Application: Form-1 for one design in one class with prescribed fee of Rs. 1,000/-.
- Representation Sheets: Four sets of representation sheets in durable A4 size paper with photographs/line drawings/computer graphics showing different views of the article.
- Statement of Novelty: Must clearly specify where the novelty resides.
- Disclaimer: Statement disclaiming any rights over trademarks, mechanical features, words, numerals, flags, etc.
- Power of Attorney: If filed through an agent.
- Priority Document: For convention applications.

### 2.8.2 Filing Office

Applications can be filed at:

- Kolkata (Head Office) - Receiving and Examination
- Delhi, Mumbai, and Chennai (Branch Offices) - for receipt and forwarding to Kolkata

### 2.8.3 Representation Sheet Contents

- A4 size white durable paper
- Sheet numbers to be mentioned on each sheet
- Photographs, line diagrams, or computer graphics of the article
- Name of each view (Front View, Back View, Side View, Top View, Bottom View, etc.)
- Statement of Novelty
- Disclaimer
- Signature of applicant/agent
- Date

### 2.8.4 Statement of Novelty — Examples

**NOTE: Example 1: 'Novelty resides in the shape and configuration of the Pressure Cooker as illustrated.'**

**Example 2: 'Novelty resides in the shape and configuration particularly in the portions marked A & B of the Pressure Cooker as illustrated.'**

### 2.8.5 Statement of Disclaimer — Examples

- No claim is made to any right to use as a trade mark what is shown in the representations.
- No claim is made in respect of any mechanical or other action of any mechanism or mode or principle of construction of the article.
- No claim is made to the exclusive use of words, letters, numerals, flags, crowns, etc. appearing in the design.

### 2.8.6 Stages from Filing to Registration

The registration process follows these stages:

16. Filing of Application
17. Numbering and Dating of Application
18. Examination by Controller of Designs
19. Communication of Objection(s), if any
20. Response to Objections / Removal of Objections (or abandonment)
21. Hearing if objection(s) contested
22. Waiving / Removal of Objections → Acceptance
23. Notification in the Official Gazette
24. Issue of Certificate of Registration

**NOTE: If objections are not complied with: Application is ABANDONED.**

**If objections are maintained after hearing: Application is REFUSED.**

**Refusal can be appealed to the High Court.**

## 2.9 Duration of Protection

- Initial Period: 10 years from the date of registration.
- Extension: Can be extended by 5 more years on application to the Controller before expiry of the initial period.
- Maximum Protection: 15 years in total.
- Lapsed designs can be restored under the provisions of the Act.

## 2.10 Benefits / Rights of Registration

### 2.10.1 Why Register?

- Exclusive right to apply the design to the article in the registered class
- Ban others from copying the design
- Certificate of ownership — proof of rights
- Design registration can be used in court as evidence
- Better licensing position — can license or sell as legal property
- Broader protection than copyright in many cases
- Right to sue for piracy of design

### 2.10.2 Rights of the Registered Proprietor

- Exclusive right to apply design to the article in the class in which it is registered.
- Better protection and right to sue for piracy of design.
- Licensing of design as legal property for consideration or royalty.

## 2.11 Revocation of Design Registration

A registered design can be cancelled on the following grounds (Section 19):

- The design was not new or original at the date of registration.
- The design was previously published in India or elsewhere.
- The design is not registrable under the Act.
- It is not a design as defined in the Act.

Any person interested can apply for cancellation before the Controller or seek revocation through the court.

## 2.12 Infringement and Piracy of Design

Infringement of copyright in a design is termed 'Piracy of Design' under Section 22 of the Designs Act, 2000.

### 2.12.1 What Constitutes Piracy

- Fraudulent imitation of a registered design.
- Obvious imitation of a registered design.
- Importing any article with a pirated design.
- Applying the design to an article for sale without authorization.

### 2.12.2 Remedies

- Fine: Liable to a fine not exceeding Rs. 25,000 per contravention.
- Total Cap: The total amount recoverable in respect of any one design shall not exceed Rs. 50,000.
- Civil Suit: Right to bring a suit for recovery of damages or for injunction.
- Injunction: Courts can grant interim or permanent injunctions.
- Account of Profits: Wrongdoer may be ordered to return profits.

### 2.12.3 Important Defences

- Prior publication of the design by the plaintiff.
- The design is not new or original.
- The registration was wrongly granted.
- Defendant also has a valid registration for the design.

## 2.13 International Framework — Hague Agreement

- The Hague Agreement Concerning the International Registration of Industrial Designs entered into force in 1925.
- Administered by WIPO (World Intellectual Property Organization).
- Allows an applicant to file a single international deposit with WIPO or with the national office in a member country.
- The design will then be protected in as many member countries of the treaty as desired.
- Revised at London (1934), at the Hague (1960), supplemented at Monaco (1961), Stockholm (1967), and Geneva (1999).

## 2.14 Legislative Framework of IP Administration in India

### 2.15 Overlap of Design, Copyright and Trade Mark

- Design protects aesthetic appearance of products. Anything functional is not registrable as a design.
- Copyright in a design comes to an end if the work has industrial application and is reproduced more than 50 times.
- There is a difference between copyright in a design and copyright in a drawing — a drawing of a design can have copyright, but once the design is mass-produced, design law applies.
- Shape can also be a trade mark, but articles like dresses and sculptures are generally not protectable as trade marks.
- Artistic patterns on cloth are protected as copyrights; once implemented and mass-produced, they may be protected as design rights.



## 2.16 Industrial Design — Case Studies

### Case 1: Tahiliani Design Private Ltd. vs. Renu Tandon & Anr. [C.S. (OS) No. 2222 of 2008 — Delhi HC]

- Facts: Tahiliani Design alleged that the defendants' garments were copies of their 2006 collection designs.
- Delhi High Court granted ex-parte ad-interim injunction on 21.10.2008.
- Defendant argued both designs were separate and that the prints were generic Jamawar Prints.
- Matter was referred to Mediation — pending.
- Key Lesson: Even fashion designs (as artistic works) can be protected and courts can grant interim relief.

### Case 2: Microfibres Inc vs. Girdhar and Co. and Ors. [2006 (32) PTC 157 (Del)]

- Facts: Plaintiff claimed copyright in upholstery designs without a registered design.
- Defendant had copied the upholstery fabric design.
- Issue: Whether copyright was lost because of more than 50 reproductions (Section 15, Copyright Act).
- Held: Court refused to grant injunction on the technical ground that more than 50 reproductions had been made, which transferred protection from copyright to design law. Since design was not registered, no relief was granted.
- Key Lesson: If a design is to be mass-produced (>50 times), it must be registered under the Designs Act for protection; copyright alone will not suffice.

### Case 3: Baldev Singh vs. Shriram Footwear [1997 (17) PTC 268]

- Facts: Plaintiff sought injunction claiming his shoe sole designs had distinctive shape and configuration.
- Held: During arguments, it was revealed that the plaintiff himself had copied designs from Bata India Ltd.
- Injunction refused — a pirate cannot seek relief for piracy.
- Key Lesson: Clean hands doctrine — plaintiff seeking equity must come with clean hands.

### Case 4: Hindustan Sanitaryware & Industries Ltd. vs. Dip Crafts Industries [2003 (26) PTC 163 (Del)]

- Facts: Plaintiff had registered designs for bathtubs ('Stylush', 'Corel', 'Ultra'). Defendant copied the designs.
- Defendant could not prove he had been selling bathtubs prior to the registration.
- Held: Sufficient resemblance between the two designs found. Plaintiff's registered design was protected and injunction granted.
- Key Lesson: A registered design is strong evidence of ownership and prior use by defendant must be proven.

#### Case 5: Metro Plastic Industries vs. M/s. Galaxy Footwear [2000 (20) PTC 1 — Full Bench, Delhi HC]

- Held: In a suit for infringement of design, defendant is entitled to take a defence that the registration itself was incorrect.
- Grounds like 'design is not new or original' can be raised to challenge the registration.
- Registration is merely proof at the first stage; plaintiff must establish newness and originality.
- Key Lesson: Design registration is not conclusive; it can be challenged during infringement proceedings.

#### Case 6: Dabur India Ltd. vs. Rajesh Kumar & Ors. [2008 (37) PTC 227]

- Facts: Dabur alleged infringement of design in respect of a bottle used for packing hair oil.
- Held: The bottle was a common shape used by several companies and was in use prior to Dabur's registration. No novelty was found.
- Key Lesson: For validity of a registered design, there must be genuine novelty and originality. A common trade dress cannot be monopolized.

#### Case 7: Vikas Jain vs. Aftab Ahmad And Ors. [2008 (37) PTC 288 (Del)]

- Facts: Suit for infringement and passing off of design in a toy scooter. Defendant also had a separate registration for the same design (subsequent registration).
- Held: Defendant's design was identical to plaintiff's. Defendant's subsequent registration did not protect him.
- Key Lesson: Prior registration prevails. Subsequent registration of a copied design provides no protection.

## SECTION 3: COPYRIGHT

### 3.1 Introduction to Copyright

Copyright is a form of intellectual property protection that grants the creator of an original work exclusive rights over its use and distribution. It is governed in India by the Copyright Act, 1957, which has been amended several times, most recently in 2012.

Copyright subsists automatically upon creation of a work — no registration is required. However, registration serves as prima facie evidence of ownership in legal proceedings.

**NOTE: Core Principle: Copyright protects the EXPRESSION of an idea, not the idea itself. Ideas, concepts, themes, and methods are free for everyone to use. Protection arises only when the idea is expressed in a tangible form.**

### 3.2 Nature and Scope of Copyright

Copyright is a bundle of rights, both economic and moral:

### 3.2.1 Subject Matter of Copyright

The following works are protected under the Copyright Act, 1957:

- Literary Works: Novels, poems, articles, computer programs, databases, tables, and compilations
- Dramatic Works: Scripts, choreographic works, and plays
- Musical Works: Compositions (notes and words)
- Artistic Works: Paintings, sculptures, drawings, diagrams, maps, photographs, engravings, works of architecture
- Cinematograph Films: Including sound tracks
- Sound Recordings: Recorded music or other sounds

**NOTE: Artistic work under Sec. 2(c) of Copyright Act means: (i) A painting, sculpture, drawing, diagram, map, chart or plan, engraving or photograph; (ii) Any work of architecture; (iii) Any other work of artistic craftsmanship. Such work is NOT a subject matter of industrial design.**

### 3.2.2 Conditions for Protection

- Originality: Must be original — i.e., independently created and bearing some minimal creativity.
- Expression in Tangible Form: Must be expressed in some material form.
- Human Authorship: Must result from human intellectual effort.
- No Registration Required: Protection is automatic from the moment of creation.

## 3.3 Rights Conferred by Copyright

The Copyright Act grants the owner both Economic Rights and Moral Rights:

### 3.3.1 Economic Rights (Section 14)

The owner has the exclusive right to:

- Reproduce the work in any material form
- Issue copies to the public (publication)
- Perform the work in public
- Communicate the work to the public (includes broadcasting)
- Make any adaptation of the work (translation, abridgement, screenplay)
- Sell or give on commercial rental any copy of the work

### 3.3.2 Moral Rights (Section 57)

These are personal rights that remain with the author even after transfer of copyright:

- Right of Paternity (Author's Right): Right to claim authorship of the work.
- Right of Integrity: Right to object to any distortion, mutilation, modification or other act in relation to the work which would be prejudicial to the author's honor or reputation.

Note: Moral rights cannot be waived or transferred.

### 3.4 Duration of Copyright Protection

### 3.5 Copyright Protection — How it Works

- Automatic: Copyright arises automatically at the moment of creation — no formalities needed.
- Voluntary Registration: Can be registered under Chapter X of the Copyright Act for evidentiary purposes.
- Symbol: The copyright notice © [Year] [Author/Owner] is commonly used but not legally mandatory in India.
- Territorial: Copyright protection is territorial but India is a signatory to the Berne Convention and other treaties, providing international protection.

### 3.6 Transfer of Copyright

Copyright, being a property right, can be transferred in the following ways:

#### 3.6.1 Assignment (Section 18)

- Copyright can be assigned by the owner to another person.
- Assignment can be partial (specific rights) or total (all rights).
- Assignment can be for a limited period or territory.
- Must be in writing and signed by the assignor or authorized agent.
- If no period is specified: deemed to be for 5 years.
- If no territory is specified: deemed to extend to India.

#### 3.6.2 License (Section 30)

- Copyright owner (licensor) grants rights to another (licensee) without transferring ownership.
- Can be exclusive or non-exclusive.
- Compulsory License: Government can grant compulsory licenses in certain circumstances (Sections 31-32A) — e.g., for withheld works, unpublished Indian works.
- Statutory License: Available for broadcasting organizations to broadcast literary, musical, and sound recording works (Section 31D).

#### 3.6.3 Reversion of Assignment (Section 19A)

- If the assignee does not exercise the assigned rights within 1 year from the date of assignment, the assignment shall lapse automatically (unless a longer period is specified).

### 3.7 Rights of Broadcasting Organizations and Performers

#### 3.7.1 Broadcasting Reproduction Rights (Section 37)

- Every broadcasting organization has a special right, known as 'Broadcasting Reproduction Right', in respect of its broadcasts.
- Duration: 25 years from the beginning of the year following the year in which the broadcast is made.

- Rights include: Recording the broadcast, selling/hiring recordings, re-broadcasting the broadcast, communicating the broadcast to the public for a fee.

### 3.7.2 Performer's Rights (Section 38)

- A performer (actor, musician, dancer, acrobat, juggler, conjurer, snake charmer, lecturer, etc.) has special rights in their performance.
- Rights include: Making a sound/visual recording of the performance, reproducing it, broadcasting it, and communicating it to the public without consent.
- Duration: 25 years from the beginning of the year following the year in which the performance was made (extended to 50 years by 2012 Amendment).
- Moral Rights of Performers: Right to claim as performer, and right to restrain or claim damages in respect of any distortion or mutilation of the performance.

## 3.8 Exceptions / Limitations to Copyright (Fair Dealing)

Chapter VI of the Copyright Act, 1957 (Sections 51-53) and Section 52 provide for acts that do not constitute copyright infringement:

### 3.8.1 Fair Dealing Provisions (Section 52)

- Research or Private Study: Fair dealing with any work for the purposes of research or private study.
- Criticism or Review: Fair dealing for the purpose of criticism or review of that work or other works.
- Reporting Current Events: Fair dealing for reporting current events in any manner.
- Judicial Proceedings: Reproduction for the purpose of judicial proceedings or reporting such proceedings.
- Educational Purposes: Reproduction by teachers and pupils in educational institutions.
- Reading or Recitation in Public: Reading or recitation of reasonable extracts in public.
- Libraries and Archives: Librarians can make copies for certain purposes.
- Parody: Parody or caricature of a work (introduced in 2012 Amendment).
- Transient/Incidental: Transient or incidental storage of a work or performance in an electronic medium.

### 3.8.2 Specific Exceptions

- Computer Programs: Reverse engineering, decompilation for interoperability.
- Performances: The Section 52(1)(u) exception — certain uses of performances in films are not covered by fair use.
- Design-Copyright Overlap: Once a work is industrially applied more than 50 times, copyright protection expires and only registered design protection applies.

## 3.9 Infringement of Copyright

Copyright infringement occurs when any of the exclusive rights of the copyright holder are exercised without authorization. Section 51 defines infringement.

### 3.9.1 Acts Constituting Infringement

- Reproducing the work without permission.
- Issuing copies to the public without permission.
- Performing the work in public without permission.
- Making a cinematograph film of the work without permission.
- Making any adaptation or translation without permission.
- Permitting any place for infringing performance.
- Selling, hiring, or distributing infringing copies.
- Importing infringing copies (except for personal use).

### 3.9.2 Online/Digital Infringement

- Uploading copyrighted content without permission.
- Streaming copyrighted movies/music illegally.
- Downloading and sharing copyrighted material via P2P networks.

### 3.9.3 Civil Remedies (Section 55)

- Injunction: To prevent further infringement.
- Damages or Account of Profits.
- Order for delivery up of infringing copies.
- Anton Piller Order (Search Order) for seizure of infringing goods.

### 3.9.4 Criminal Remedies (Sections 63-65)

- Imprisonment from 6 months to 3 years.
- Fine from Rs. 50,000 to Rs. 2,00,000.
- Repeat offenses: Enhanced penalties.
- Seizure and forfeiture of infringing copies.

## 3.10 AI and Copyright — Special Issue

A growing debate concerns AI-generated content and copyright:

- Copyright requires HUMAN intellectual effort — if AI autonomously generates content without human creative control, copyright cannot be enforced.
- However, if the human author exercises creative control through prompt design, selection, modification or arrangement of the AI output, copyright may subsist in the human contribution.
- The AI itself cannot hold copyright.

## 3.11 Copyright Case Studies

### Case 1: Suneet Varma Design Pvt. Ltd. vs. Jas Kirat Singh Narula & Anr. [2007 (34) PTC 81 (Del)]

- Facts: Plaintiff alleged infringement of copyright as defendant used the designer's dress in a movie worn by an actress.
- Defendant argued this was fair use under Section 52(1)(u) — costumes worn by actors.

- Held: Not all clothes worn by actors constitute Fair Use under Section 52(1)(u). The fair use exception is limited.
- Key Lesson: Costumes used in films can infringe the copyright of designers, and fair use in films has boundaries.

#### **Case 2: Microfibres Inc vs. Girdhar and Co. and Ors. [2006 (32) PTC 157 (Del)]**

- Facts: Plaintiff had artistic works (upholstery designs) — reproduced more than 50 times.
- Held: When a work is industrially applied more than 50 times, copyright protection is extinguished (Section 15). Without registered design, no relief available.
- Key Lesson: The 50-reproduction threshold is critical — creators must register designs under the Designs Act when mass-producing.

#### **Case 3: Tahiliani Design Private Ltd. vs. Renu Tandon & Anr. [C.S. (OS) No. 2222 of 2008 — Delhi HC]**

- Facts: Tahiliani alleged that defendant's garments were copies of the plaintiff's fashion collection (2006).
- Delhi HC granted ex-parte ad-interim injunction.
- Defendant argued prints were generic 'Jamawar Prints'.
- Key Lesson: Fashion designs created as unique artistic works can receive copyright protection and injunctive relief.

## **QUICK REVISION — COMPARISON TABLE**

## **KEY LEGAL PROVISIONS AT A GLANCE**